

California

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Family of detainee who died under ICE custody says he was denied medical care

Alberto Gutiérrez Reyes died in a California hospital in February after suffering chest pain and shortness of breath



📷 Alberto Gutiérrez. Photograph: GoFundme

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A man under the custody of federal immigration agents died in a [California](#) hospital last month after suffering from chest pain and shortness of breath, with one local official alleging the detainee was denied medical care before his death.

According to Immigration and Customs Enforcement (ICE), Alberto Gutiérrez Reyes, from Mexico, died on 27 February at a medical center in Victorville, California, just two days after the 48-year-old reported “feeling faint” and was transferred to the medical center.

In a [statement](#) on Facebook, Los Angeles city council member Eunisses Hernandez said Gutiérrez Reyes was “denied medical care”.

“This is the 9th known death in ICE custody this year,” Hernandez said in the 28 February statement. “The [Trump administration](#) does not value human life. They are using our federal tax dollars to bankroll detention and a deadly deportation machine instead of funding healthcare, food, housing, education, and the systems that actually keep people alive.”

ICE and the Department of Homeland Security (DHS), which oversees ICE, did not immediately respond to a request for comment from the Guardian.

Gutiérrez Reyes’s wife, Patricia Martínez Hernandez, spoke to [ABC7](#) and said her husband suffered from diabetes and high cholesterol, which she said were left untreated by the medical center.

“He would say that he wasn’t feeling well. He wasn’t feeling well. When my son went to go see him Sunday, my son goes every Sunday, he would tell me, ‘Mom, dad’s skin is yellow. His face is yellow.’ Last week, the Sunday before, he told me, ‘Mom, his eyes are yellow,’” Martínez Hernandez told the news outlet.

The office of foreign affairs in Mexico said “an immediate and thorough investigation will be demanded into the conditions that led to the deaths of Mexican nationals in the custody of this agency, in order to determine responsibility and ensure that such incidents do not occur again”, according to a [statement](#) released on Sunday.

On Thursday, the Mexican president, Claudia Sheinbaum, said during her [daily morning press briefing](#) that the government is “demanding all the information. How did it happen? What happened? Why did it happen?”

“This is not the first case, and this diplomatic note was stronger because we must protect the lives of our compatriots,” Sheinbaum said. “In every case, a diplomatic note has been sent, and in every case, the families are being supported in filing complaints in the United States, in the appropriate courts.”

Border patrol arrested Gutiérrez Reyes on 9 January in Los Angeles, and he was later transferred to the Adelanto ICE processing center. He was previously arrested in 2010 for “inflicting corporal injury on a spouse or cohabitant”.

Gutiérrez Reyes migrated to the United States in 2001 and eventually started working in construction in Echo Park, Los Angeles, according to the [Los Angeles Times](#). His wife told the Times that she wasn’t notified by the hospital or ICE of her husband’s death. She found out after receiving a call from the Mexican consulate.

Gutiérrez Reyes was a father to Erick, 19, who was born in Los Angeles, according to the LA Times.

“We were a close-knit family. My partner wasn’t an animal, so they shouldn’t have prevented us from saying goodbye,” Martínez Hernandez told the news outlet. “I want answers. Justice for him. I don’t want ICE to just say what happened; they need to pay attention to those who are sick. They can’t die simply because of negligence,” she said.

She also told the Los Angeles Times that he had asked for medical care that went unreceived.

“He told me he had a fever... that he was filling out paper after paper so they would take him to the doctor. ‘Let’s see if they’ll take me,’ he told me that night,” she said.

A [GoFundMe](#) campaign was created to help the family with funeral and general expenses.

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